

26STCV00590 26STCV00590

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-07-01

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Case Number: 26STCV00590 Hearing Date: July 1, 2026 Dept: 833

Ally Bank, Case No. 26STCV00590

v.

Hearing:

July 1, 2026

Location:

Stanley Mosk Courthouse

Department:

833

John Eric Jones Jr., et al. Judge: Joseph Lipner

[Tentative] Order Denying

Applications for Writ of Possession

INTRODUCTION

Plaintiff Ally Bank ("Plaintiff") moves for writs of possession against Defendants John Eric Jones Jr. ("Jones") and Timothy Hunter Staton ("Staton") (collectively, "Defendants") as to the following property: 2024 Honda Civic, motor vehicle, Vehicle Identification Number 2HGFE1F7RH313017, with a value of \$24,000.00 (the "Vehicle"). Defendants have not opposed the applications.

The court entered dismissal without prejudice as to Staton on May 7, 2026. Therefore, the application against Staton is moot.

The court denies the application against Jones because Plaintiff fails to provide proper notice to Jones, file proof of service of summons and complaint on Jones with the court, and show probable cause to believe the Vehicle is located at the locations specified in the application.

LEGAL STANDARD

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought.” (Code Civ. Pro. § 512.010(a).)

Pursuant to Code of Civil Procedure section 512.010(b), the application must be submitted under oath and include:

- (1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.
- (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.
- (3) A particular description of the property and a statement of its value.
- (4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.
- (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

Before the hearing on the Writ of Possession, the Defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Pro. § 512.030.)

“The writ will be issued if the court finds that the plaintiff’s claim is probably valid and the other requirements for issuing the writ are established.” (Code Civ. Pro. § 512.040(b).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 511.090.)

DISCUSSION

A.

Notice

Plaintiff did not provide proof of service of the application for writ of possession on Jones. Additionally, the court notes that it rejected entry of default against Jones for failure to file proof of service of the summons and complaint. Plaintiff has not filed proof of service since the court’s rejection of Plaintiff’s request for entry of default. Therefore, Plaintiff’s application is not in compliance with Code of Civil Procedure section 512.030.

B.

Probable Validity of Plaintiff’s Claim

Plaintiff’s application for writ of possession is based on the causes of action for claim and delivery and money due on contract.

Plaintiff is a bank which entered into a contract with Defendants, created by Findlay Honda Henderson dealership (the “Dealership”), providing financing for the purchase of the Vehicle. (Nunez Decl. ¶ 6; Exh. A.) The Dealership assigned all its interest in the contract to Plaintiff, and all payments were to be made to Plaintiff. (Nunez Decl. ¶ 6; Exh. A.) Plaintiff became the owner and “holder” of the contract and acquired its interest in the collateral, the Vehicle. (Nunez Decl.

¶ 7; Exh. B.) Under the contract, if

Defendants defaulted on any provision, Plaintiff held the right to immediately possess the Vehicle. (Nunez Decl. ¶ 8.)

Defendants defaulted on the contract by failing to make

their regular monthly payment on December 11, 2024. (Nunez Decl. ¶ 8.) Before Plaintiff brought this action, Plaintiff noticed Defendants of their default, and Defendants failed, refused,

or neglected to return the Vehicle to Plaintiff. (Nunez Decl. ¶ 9; Exh. C.) Defendants owe Plaintiff a total of

\$35,125.75. (Nunez Decl. ¶ 10.) The average wholesale and retail values of the

Vehicle as of November 2025 were \$24,000.00 and \$28,400.00, respectively. (Nunez Decl. ¶ 11; Exh. E.) Defendants have possession of the Vehicle and

are concealing possession from Plaintiff. (Nunez Decl. ¶ 12.)

C.

Wrongful Detention

Pursuant to Code of Civil Procedure section 512.010(b)(2), the

application must include “a showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.”

Plaintiff makes this showing.

D.

Description and Value of Property

Pursuant to Code of Civil Procedure section 512.010(b)(3), the

application must include a particular description of the property and a statement of its value. Plaintiff

provided the particular description of the property, by make, and serial number. Plaintiff also provided a

statement as to value and attached as Exhibit E a copy of the J.D. Power Report for November 2025, which is an industry standard index listing approximate

values of motor vehicles and is a reliable guide as to value. Plaintiff therefore satisfies section 512.010(b)(3).

E.

Statutory Statement

Pursuant to Code

of Civil Procedure section 512.010(b)(5), Plaintiff must provide a statement that the property has not been taken for a tax, assessment, or fine, pursuant to statute and has not been seized under an execution against the Plaintiff's property. Plaintiff complied with this requirement.

F.

Location of the Property

Pursuant to Code of Civil Procedure section 512.010(b)(4), Plaintiff must identify the probable location of the Vehicle and establish probable cause to that effect. Plaintiff's application for writ of possession states that the Vehicle is located "[i]n a garage, or other parking area, windowless, locked or otherwise, at: 312 W. 5th St., #1009, Los Angeles, CA 90013," or "617 Garden St., #406, Santa Barbara, CA 93101." (Appl. ¶ 6.) Because Plaintiff seeks an order authorizing the levying officer to enter private property, Plaintiff must establish "probable cause" to believe that the Vehicle is located at the property specified in the application. (See Code Civ. Pro. §§ 512.010(b)(4), 512.080.) Plaintiff failed to meet this requirement.

Plaintiff's representative declares that "[t]he file of Plaintiff reflects that defendant John Jones resides at 312 W. 5th St., #1009, Los Angeles, CA 90013. Timothy Staton resides at 617 Garden St., #406, Santa Barbara, CA 93101. In reliance upon the information contained in the file and computer system of Plaintiff pertaining to the subject motor vehicle, to the best of my knowledge, information and belief, the current location of the subject motor vehicle is as follows: 312 W. 5th St., #1009, Los Angeles, CA 90013 or 617 Garden St., #406, Santa Barbara, CA 93101." (Nunez Decl. ¶ 14.) However, Plaintiff does not show probable cause to support finding that the Vehicle is located in Los Angeles or Santa Barbara. Significantly, Plaintiff was not served with proof of service, which could confirm Jones' address for the Court. Plaintiff does not submit any declarations from process servers or other agents attesting that the Vehicle has been spotted at the specified locations in Los Angeles or Santa Barbara. Plaintiff does not provide a further explanation past reliance on Plaintiff's computer system and file, which the court cannot readily verify. Therefore, on this record, Plaintiff has not established probable cause to believe that the Vehicle is located at the private property specified in the application.

G.

Undertaking

Code of Civil Procedure section 515.010 requires an undertaking to be filed before the writ issues in the amount of “not less than twice the value of the defendant’s interest in the property.”

Section

515.010(a) states that the value of the defendant’s interest “is determined by the market value of the property less the amount due and owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant’s interest in the property.”

Plaintiff submits

evidence that the fair market value of the Vehicle is between \$24,000.00 and \$28,400.00. (Nunez Decl. ¶ 11.) Because the Court denies the application on other grounds, the Court does not decide whether Plaintiff must post an undertaking.

H.

Turnover Order

Plaintiff requests a turnover order.

(See Memorandum 2.) Section 512.070

states: “If a writ of possession is issued, the court may also issue an order directing the defendant to transfer possession of the property to the plaintiff. Such order shall contain a notice to the defendant that failure to turn over possession of such property to plaintiff may subject the defendant to being held in contempt of court.”

(emphasis added.) “Thus a ‘turnover’ order, issued pursuant to section 512.070, is not a separate remedy but rather an alternative means of enforcing a writ of possession.” (Edwards v. Sup.Ct. (1991) 230 Cal.App.3d 173, 178.)

Because not all

requirements for issuance of the writ of possession are met, the court denies the request for a turnover order.

I.

Oral

Testimony

Plaintiff “anticipates the need for extremely brief, but very important, examination of the defendant” regarding the Vehicle’s location. (See Memorandum 3.) However, Jones has not responded to the complaint, and Plaintiff does not demonstrate that it will be able to obtain Jones’ testimony at the hearing. Furthermore, “[a] party seeking permission to introduce oral evidence, except for oral evidence in rebuttal to oral evidence presented by the other party, must file, no later than three court days before the hearing, a written statement stating the nature and extent of the evidence proposed to be introduced and a reasonable time estimate for the hearing.” (Cal. Rules of Court, Rule 3.1306(b).) Plaintiff has not complied with this rule. Therefore, the court denies the request for oral testimony.

CONCLUSION

Based on the foregoing, the court orders as follows:

1.

The court denies the applications for a writ of possession.

2.

The court denies Plaintiff’s request for a turnover order.

3.

The court denies Plaintiff’s request for oral testimony.

IT IS SO ORDERED.

Dated: July 1, 2026

Joseph Lipner

Superior
Court Judge